



CHAPTER 49.

An Act to amend the law relating to trade marks. A.D. 1937.
[13th July 1937.] —

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Amendments of Trade Marks Law.

1.—(1) In section three of the Trade Marks Act, 1905 (in this Act referred to as "the principal Act"), the following definition shall be substituted for the definition of a trade mark :—

Definition
of trade
mark.
5 Edw. 7.
c. 15.

"A 'trade mark' shall mean, except in relation to a certification trade mark, a mark used or proposed to be used in relation to goods for the purpose of indicating, or so as to indicate, a connection in the course of trade between the goods and some person having the right either as proprietor or as registered user to use the mark, whether with or without any indication of the identity of that person, and shall mean, in relation to a certification trade mark, a mark registered, or deemed to have been registered, under section eighteen of the Trade Marks (Amendment) Act, 1937."

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(2) References in the Trade Marks Acts to the use of a mark shall be construed as references to the use of a printed or other visual representation of the mark, and references therein to the use of a mark in relation to goods, or for goods, shall be construed as references to the use thereof upon, or in physical or other relation to, goods.

Registra-
bility in
Part A of
the register.

2.—(1) In section nine of the principal Act (which specifies the essential particulars required in a trade mark for it to be registrable in Part A of the register), for the words “A registrable trade mark must contain or consist of at least one of the following essential particulars” there shall be substituted the words “In order for a trade mark (other than a certification trade mark) to be registrable in Part A of the register it must contain or consist of at least one of the following essential particulars”.

(2) In the said section nine, for the words from “For the purposes of this section” to the end of the section there shall be substituted the following words:—

“For the purposes of this section ‘distinctive’ shall mean adapted, in relation to the goods in respect of which a trade mark is registered or proposed to be registered, to distinguish goods with which the proprietor of the trade mark is or may be connected in the course of trade from goods in the case of which no such connection subsists, either generally or, where the trade mark is registered or proposed to be registered subject to limitations, in relation to use within the extent of the registration.

In determining whether a trade mark is adapted to distinguish as aforesaid, the tribunal may have regard to the extent to which—

- (a) the trade mark is inherently adapted to distinguish as aforesaid; and
- (b) by reason of the use of the trade mark or of any other circumstances, the trade mark is in fact adapted to distinguish as aforesaid.”

3.—(1) In order for a trade mark to be registrable in Part B of the register, it must be capable, in relation to the goods in respect of which it is registered or proposed to be registered, of distinguishing goods with which the proprietor of the trade mark is or may be connected in the course of trade from goods in the case of which no such connection subsists, either generally or, where the trade mark is registered or proposed to be registered subject to limitations, in relation to use within the extent of the registration. A.D. 1937.

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Registra-
bility in
Part B of the
register and
provisions
as to regis-
trations
therein.

In determining whether a trade mark is capable of distinguishing as aforesaid, the tribunal may have regard to the extent to which—

(a) the trade mark is inherently capable of distinguishing as aforesaid; and

(b) by reason of the use of the trade mark or of any other circumstances, the trade mark is in fact capable of distinguishing as aforesaid.

(2) The provisions of subsection (1) of section forty-one of the principal Act (being provisions relating to the conclusiveness of the original registration of a trade mark after the expiration of seven years from the date thereof) shall not apply to registrations in Part B of the register.

Subject as aforesaid, the provisions of the Trade Marks Acts, other than provisions whose operation is limited by the terms thereof to registration in Part A of the register, shall have effect in relation to the registration of trade marks in Part B of the register and to trade marks registered therein as they have effect in relation to the registration of trade marks in Part A of the register and to trade marks registered therein.

(3) The foregoing provisions of this section shall have effect in substitution for the provisions of subsections (1) to (5) of section two, and of section three, of the Trade Marks Act, 1919, and of the First Schedule thereto, and accordingly those enactments shall be repealed. 9 & 10
Geo. 5. c. 79.

4.—(1) The registration of a trade mark shall not be deemed to have become invalid by reason only of any use after the date of the registration of a word or words which the trade mark contains or of which it Words used
as name or
description
of an article
or sub-
stance.

A.D. 1937. consists as the name or description of an article or substance :
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Provided that, if it is proved either—

- (a) that there is a well-known and established use of the word or words as the name or description of the article or substance by a person or persons carrying on a trade therein, not being use in relation to goods connected in the course of trade with the proprietor or a registered user of the trade mark or (in the case of a certification trade mark) goods certified by the proprietor; or
- (b) that the article or substance was formerly manufactured under a patent (being a patent in force at, or granted after, the passing of the Trade Marks Act, 1919), that a period of two years or more after the cesser of the patent has elapsed, and that the word or words is or are the only practicable name or description of the article or substance,

the provisions of the next succeeding subsection shall have effect.

(2) Where the facts mentioned in paragraph (a) or (b) of the foregoing subsection are proved with respect to any word or words, then—

- (a) if the trade mark consists solely of that word or those words, the registration of the trade mark, so far as regards registration in respect of the article or substance in question or of any goods of the same description, shall be deemed for the purposes of section thirty-five of the principal Act to be an entry wrongly remaining on the register;
- (b) if the trade mark contains that word or those words and other matter, the Court or the Registrar, in deciding whether the trade mark shall remain on the register, so far as regards registration in respect of the article or substance in question and of any goods of the same description, may, in case of a decision in favour of its remaining on the register, require as a condition thereof that the proprietor shall disclaim any right to the exclusive use in relation to that

article or substance and any goods of the same description of that word or those words, so however, that no disclaimer upon the register shall affect any rights of the proprietor of a trade mark except such as arise out of the registration of the trade mark in respect of which the disclaimer is made; and

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- (c) for the purposes of any other legal proceedings relating to the trade mark,—

(i) if the trade mark consists solely of that word or those words, all rights of the proprietor to the exclusive use of the trade mark, or

(ii) if the trade mark contains that word or those words and other matter, all rights of the proprietor to the exclusive use of that word or those words,

in relation to the article or substance in question or to any goods of the same description, whether under the common law or by registration, shall be deemed to have ceased on the date at which the use mentioned in paragraph (a) of the last foregoing subsection first became well known and established, or at the expiration of the period of two years mentioned in paragraph (b) of the last foregoing subsection.

(3) No word which is the commonly used and accepted name of any single chemical element or single chemical compound, as distinguished from a mixture, shall be registered as a trade mark in respect of a chemical substance or preparation, and any such registration in force at the commencement of this Act or thereafter shall, notwithstanding anything in section forty-one of the principal Act, be deemed for the purposes of section thirty-five of the principal Act to be an entry made in the register without sufficient cause, or an entry wrongly remaining on the register, as the circumstances may require :

Provided that the foregoing provisions of this subsection shall not have effect in relation to a word which is used to denote only a brand or make of the element or compound as made by the proprietor or a registered user of the trade mark, as distinguished from the element or

A.D. 1937. — compound as made by others, and in association with a suitable name or description open to the public use.

(4) The foregoing provisions of this section shall have effect in substitution for the provisions of section six of the Trade Marks Act, 1919, and accordingly that section shall be repealed.

Preliminary
advice by
Registrar as
to distinc-
tiveness.

5.—(1) The power to give to a person who proposes to apply for the registration of a trade mark in Part A or Part B of the register advice as to whether the trade mark appears to the Registrar *prima facie* to be inherently adapted to distinguish, or capable of distinguishing, as the case may be, shall be a function of the Registrar under the Trade Marks Acts.

(2) Any such person as aforesaid who is desirous of obtaining such advice as aforesaid must make application to the Registrar therefor in the prescribed manner.

(3) If on an application for the registration of a trade mark as to which the Registrar has given advice as aforesaid in the affirmative, made within three months after the advice is given, the Registrar, after further investigation or consideration, gives notice to the applicant of objection on the ground that the trade mark is not adapted to distinguish, or capable of distinguishing, as the case may be, the applicant shall be entitled, on giving notice of withdrawal of the application within the prescribed period, to have repaid to him any fee paid on the filing of the application.

Prohibition
of registra-
tion of
deceptive,
&c. matter.

6. It shall not be lawful to register as a trade mark or part of a trade mark any matter the use of which would, by reason of its being likely to deceive or cause confusion or otherwise, be disentitled to protection in a court of justice, or would be contrary to law or morality, or any scandalous design.

The foregoing provisions of this section shall have effect in substitution for the provisions of section eleven of the principal Act, and accordingly that section shall be repealed.

Assignment
and trans-
mission of
trademarks.

7.—(1) Notwithstanding any rule of law or equity to the contrary, a registered trade mark shall be, and shall be deemed always to have been, assignable and transmissible either in connection with the goodwill of a business or not.

(2) A registered trade mark shall be, and shall be deemed always to have been, assignable and transmissible in respect either of all the goods in respect of which it is registered, or was registered, as the case may be, or of some (but not all) of those goods. A.D. 1937.

(3) The provisions of the two foregoing subsections shall have effect in the case of an unregistered trade mark used in relation to any goods as they have effect in the case of a registered trade mark registered in respect of any goods, if at the time of the assignment or transmission of the unregistered trade mark it is or was used in the same business as a registered trade mark, and if it is or was assigned or transmitted at the same time and to the same person as that registered trade mark and in respect of goods all of which are goods in relation to which the unregistered trade mark is or was used in that business and in respect of which that registered trade mark is or was assigned or transmitted.

(4) Notwithstanding anything in the foregoing subsections, a trade mark shall not be, or be deemed to have been, assignable or transmissible in a case in which, as a result of an assignment or transmission, there would in the circumstances subsist, or have subsisted, whether under the common law or by registration, exclusive rights in more than one of the persons concerned to the use, in relation to the same goods or description of goods, of trade marks nearly resembling each other or of identical trade marks, if, having regard to the similarity of the goods and of the trade marks, the use of the trade marks in exercise of those rights would be, or have been, likely to deceive or cause confusion:

Provided that, where a trade mark is, or has been, assigned or transmitted in such a case as aforesaid, the assignment or transmission shall not be deemed to be, or to have been, invalid under this subsection if the exclusive rights subsisting as a result thereof in the persons concerned respectively are, or were, having regard to limitations imposed thereon, such as not to be exercisable by two or more of those persons in relation to goods to be sold, or otherwise traded in, within the United Kingdom (otherwise than for export therefrom), or in relation to goods to be exported to the same market outside the United Kingdom.

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(5) The proprietor of a registered trade mark who proposes to assign it in respect of any goods in respect of which it is registered may submit to the Registrar in the prescribed manner a statement of case setting out the circumstances, and the Registrar may issue to him a certificate stating whether, having regard to the similarity of the goods and of the trade marks referred to in the case, the proposed assignment of the first-mentioned trade mark would or would not be invalid under the last foregoing subsection, and a certificate so issued shall, subject to the provisions of this section as to appeal and unless it is shown that the certificate was obtained by fraud or misrepresentation, be conclusive as to the validity or invalidity under the last foregoing subsection of the assignment in so far as such validity or invalidity depends upon the facts set out in the case, but, as regards a certificate in favour of validity, only if application for the registration under section thirty-three of the principal Act of the title of the person becoming entitled is made within six months from the date on which the certificate is issued.

(6) In a case in which as a result of an assignment or transmission of a trade mark there would in the circumstances subsist, or have subsisted, whether under the common law or by registration, an exclusive right in one of the persons concerned to the use of the trade mark limited to use in relation to goods to be sold, or otherwise traded in, in a place or places in the United Kingdom, and an exclusive right in another of those persons to the use of a trade mark nearly resembling the first-mentioned trade mark or of an identical trade mark in relation to the same goods or description of goods limited to use in relation to goods to be sold, or otherwise traded in, in another place or other places in the United Kingdom, the following provisions shall have effect, that is to say:—

- (a) Notwithstanding anything in subsections (1) to (3) of this section, a trade mark shall not, after the commencement of this Act, be assignable or transmissible in any such case:

Provided that, on application in the prescribed manner by the proprietor of a trade mark who proposes to assign it, or of a person who claims

that a trade mark has been transmitted to him or to a predecessor in title of his since the commencement of this Act, in any such case, the Registrar, if he is satisfied that in all the circumstances the use of the trade marks in exercise of the said rights would not be contrary to the public interest, may approve the assignment or transmission, and an assignment or transmission so approved shall not be deemed to be, or to have been, invalid under this paragraph or under subsection (4) of this section, so, however, that in the case of a registered trade mark this provision shall not have effect unless application for the registration under section thirty-three of the principal Act of the title of the person becoming entitled is made within six months from the date on which the approval is given or, in the case of a transmission, was made before that date. A.D. 1937.

- (b) The validity of an assignment or transmission effected or claimed to have been effected before the commencement of this Act in any such case shall be determined as if the foregoing provisions of this section had not been enacted :

Provided that, on application made in the prescribed manner within two years from the commencement of this Act by a person who claims that an assignment or transmission of a registered trade mark to him or to a predecessor in title of his has been so effected, the Registrar shall have the like jurisdiction as under the proviso to the foregoing paragraph, and an assignment or transmission approved by him shall not be deemed to have been invalid on the ground of the subsistence of such rights as aforesaid, or on the ground that the assignment or transmission was effected otherwise than in connection with the goodwill of a business or was effected in respect of some (but not all) of the goods in respect of which the trade mark was registered, if application for registration of title as aforesaid is made within six months from the date on which the approval is given or was made before that date.

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(7) Where an assignment in respect of any goods of a trade mark that is at the time of the assignment used in a business in those goods is made after the commencement of this Act otherwise than in connection with the goodwill of that business, the assignment shall not take effect until the following requirements have been satisfied, that is to say, the assignee must, not later than the expiration of six months from the date on which the assignment is made or within such extended period, if any, as the Registrar may allow, apply to him for directions with respect to the advertisement of the assignment, and must advertise it in such form and manner and within such period as the Registrar may direct.

(8) Any decision of the Registrar under this section shall be subject to appeal to the Court.

(9) The retrospective provisions of this section shall have effect without prejudice to any determination of a competent tribunal which has been made before the date of the commencement of this Act, or to the determination of any appeal from a determination so made, or to any title acquired for valuable consideration before that date.

(10) Sections twenty-two and twenty-three of the principal Act shall be repealed.

Registered
users.

8.—(1) Subject to the provisions of this section, a person other than the proprietor of a trade mark may be registered as a registered user thereof in respect of all or any of the goods in respect of which it is registered (otherwise than as a defensive trade mark) and either with or without conditions or restrictions.

The use of a trade mark by a registered user thereof in relation to goods with which he is connected in the course of trade and in respect of which for the time being the trade mark remains registered and he is registered as a registered user, being use such as to comply with any conditions or restrictions to which his registration is subject, is in this Act referred to as the "permitted use" thereof.

(2) The permitted use of a trade mark shall be deemed to be use by the proprietor thereof, and shall be deemed not to be use by a person other than the proprietor, for the purposes of section twelve of this Act and for any other purpose for which such use is material under the Trade Marks Acts or at common law.

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(3) Subject to any agreement subsisting between the parties, a registered user of a trade mark shall be entitled to call upon the proprietor thereof to take proceedings to prevent infringement thereof, and, if the proprietor refuses or neglects to do so within two months after being so called upon, the registered user may institute proceedings for infringement in his own name as if he were the proprietor, making the proprietor a defendant. A proprietor so added as defendant shall not be liable for any costs, unless he enters an appearance and takes part in the proceedings.

(4) Where it is proposed that a person should be registered as a registered user of a trade mark, the proprietor and the proposed registered user must apply in writing to the Registrar in the prescribed manner and must furnish him with a statutory declaration made by the proprietor, or by some person authorised to act on his behalf and approved by the Registrar,—

- (a) giving particulars of the relationship, existing or proposed, between the proprietor and the proposed registered user, including particulars showing the degree of control by the proprietor over the permitted use which their relationship will confer and whether it is a term of their relationship that the proposed registered user shall be the sole registered user or that there shall be any other restriction as to persons for whose registration as registered users application may be made;
- (b) stating the goods in respect of which registration is proposed;
- (c) stating any conditions or restrictions proposed with respect to the characteristics of the goods, to the mode or place of permitted use, or to any other matter; and
- (d) stating whether the permitted use is to be for a period or without limit of period, and, if for a period, the duration thereof;

and with such further documents, information or evidence as may be required under the rules or by the Registrar.

(5) When the requirements of the last foregoing subsection have been complied with, if the Registrar, after considering the information furnished to him

A.D. 1937. — under the last foregoing subsection, is satisfied that in all the circumstances the use of the trade mark in relation to the proposed goods or any of them by the proposed registered user, subject to any conditions or restrictions which the Registrar thinks proper, would not be contrary to the public interest, the Registrar may register the proposed registered user as a registered user in respect of the goods as to which he is so satisfied subject as aforesaid.

(6) The Registrar shall refuse an application under the foregoing provisions of this section if it appears to him that the grant thereof would tend to facilitate trafficking in a trade mark.

(7) The Registrar shall, if so required by an applicant, take steps for securing that information given for the purposes of an application under the foregoing provisions of this section (other than matter entered in the register) is not disclosed to rivals in trade.

(8) Without prejudice to the provisions of section thirty-five of the principal Act, the registration of a person as a registered user—

(a) may be varied by the Registrar as regards the goods in respect of which, or any conditions or restrictions subject to which, it has effect, on the application in writing in the prescribed manner of the registered proprietor of the trade mark to which the registration relates;

(b) may be cancelled by the Registrar on the application in writing in the prescribed manner of the registered proprietor or of the registered user or of any other registered user of the trade mark; or

(c) may be cancelled by the Registrar on the application in writing in the prescribed manner of any person on any of the following grounds, that is to say,—

(i) that the registered user has used the trade mark otherwise than by way of the permitted use, or in such a way as to cause, or to be likely to cause, deception or confusion;

(ii) that the proprietor or the registered user misrepresented, or failed to disclose, some fact material to the application for the

registration, or that the circumstances have materially changed since the date of the registration; A.D. 1937.

(iii) that the registration ought not to have been effected having regard to rights vested in the applicant by virtue of a contract in the performance of which he is interested.

(9) Provision shall be made by the rules for the notification of the registration of a person as a registered user to any other registered user of the trade mark, and for the notification of an application under the last foregoing subsection to the registered proprietor and each registered user (not being the applicant) of the trade mark, and for giving to the applicant on such an application and to all persons to whom such an application is notified and who intervene in the proceedings in accordance with the rules an opportunity of being heard.

(10) The Registrar may at any time cancel the registration of a person as a registered user of a trade mark in respect of any goods in respect of which the trade mark is no longer registered.

(11) Any decision of the Registrar under the foregoing provisions of this section shall be subject to appeal to the Court.

(12) Where a person is registered as a registered user of a trade mark on an application made within one year from the commencement of this Act, subsection (2) of this section shall have effect in relation to any previous use (whether before or after the commencement of this Act) of the trade mark by that person, being use in relation to the goods in respect of which he is registered and, where he is registered subject to conditions or restrictions, being use such as to comply substantially therewith, as if such previous use had been permitted use.

(13) Nothing in this section shall confer on a registered user of a trade mark any assignable or transmissible right to the use thereof.

9.—(1) Where a trade mark which is registered, or is the subject of an application for registration, in respect of any goods is identical with another trade mark which is registered, or is the subject of an application

Association
of trade
marks.

A.D. 1937. — for registration, in the name of the same proprietor in respect of the same goods or description of goods, or so nearly resembles it as to be likely to deceive or cause confusion if used by a person other than the proprietor, the Registrar may at any time require that the trade marks shall be entered on the register as associated trade marks.

The foregoing provisions of this subsection shall have effect in substitution for the provisions of section twenty-four of the principal Act and accordingly that section shall be repealed.

(2) On application made in the prescribed manner by the registered proprietor of two or more associated trade marks, the Registrar may dissolve the association as respects any of them if he is satisfied that there would be no likelihood of deception or confusion being caused if that trade mark were used by another person in relation to any of the goods in respect of which it is registered, and may amend the register accordingly.

(3) Any decision of the Registrar under the foregoing provisions of this section shall be subject to appeal to the Board of Trade, or to the Court, at the option of the appellant.

(4) Where at the commencement of this Act a trade mark is registered in Part B of the register subject to a condition rendering it assignable or transmissible only as a whole with another trade mark registered in the name of the same proprietor, or with two or more other trade marks so registered, and not separately, the trade marks shall be deemed to be associated trade marks, and the entries in the register relating thereto may be amended accordingly.

Duration of
registration.

10. Section twenty-eight of the principal Act (which relates to the duration of registration of a trade mark) shall have effect, in relation to trade marks registered as of the date of the commencement of this Act or of a subsequent date, with the substitution of a period of seven years for the period of fourteen years therein mentioned.

Intention of
applicant for
registration
to use trade
mark.

11.—(1) In subsection (1) of section twelve of the principal Act after the words "trade mark" there shall be inserted the words "used or proposed to be used by him."

(2) An application for the registration of a trade mark in respect of any goods shall not be refused, nor shall permission for such registration be withheld, on the ground only that it appears that the applicant does not use or propose to use the trade mark,—

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- (a) if the tribunal is satisfied that a body corporate is about to be constituted and that the applicant intends to assign the trade mark to the corporation with a view to the use thereof in relation to those goods by the corporation; or
- (b) if the application is accompanied by an application for the registration of a person as a registered user of the trade mark, and the tribunal is satisfied that the proprietor intends it to be used by that person in relation to those goods and the tribunal is also satisfied that that person will be registered as a registered user thereof immediately after the registration of the trade mark.

(3) The tribunal may, as a condition of the exercise of the power conferred by the last foregoing subsection in favour of an applicant who relies on intention to assign to a corporation as aforesaid, require him to give security for the costs of any proceedings before it relative to any opposition or appeal, and in default of such security being duly given may treat the application as abandoned.

(4) Where a trade mark is registered in respect of any goods under the power conferred by subsection (2) of this section in the name of an applicant who relies on intention to assign to a corporation as aforesaid, then, unless within such period as may be prescribed, or within such further period not exceeding six months as the Registrar may on application being made to him in the prescribed manner allow, the corporation has been registered as the proprietor of the trade mark in respect of those goods, the registration shall cease to have effect in respect thereof at the expiration of that period, and the Registrar shall amend the register accordingly.

12.—(1) Subject to the provisions of the next succeeding section, a registered trade mark may be taken off the register in respect of any of the goods in respect of which it is registered on application by any person aggrieved to the Court or, at the option of the

Provisions
as to
non-use of
trade mark.

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- (a) that the trade mark was registered without any bona fide intention on the part of the applicant for registration that it should be used in relation to those goods by him or, if it was registered under subsection (2) of the last foregoing section, by the corporation or registered user concerned, and that there has in fact been no bona fide use of the trade mark in relation to those goods by any proprietor thereof for the time being up to the date one month before the date of the application; or
- (b) that up to the date one month before the date of the application a continuous period of five years or longer elapsed during which the trade mark was a registered trade mark and during which there was no bona fide use thereof in relation to those goods by any proprietor thereof for the time being :

Provided that (except where the applicant has been permitted under section twenty-one of the principal Act to register an identical or nearly resembling trade mark in respect of the goods in question or where the tribunal is of opinion that he might properly be permitted so to register such a trade mark) the tribunal may refuse an application made under paragraph (a) or (b) of this subsection in relation to any goods, if it is shown that there has been, before the relevant date or during the relevant period, as the case may be, bona fide use of the trade mark by any proprietor thereof for the time being in relation to goods of the same description, being goods in respect of which the trade mark is registered.

(2) Where in relation to any goods in respect of which a trade mark is registered—

- (a) the matters referred to in paragraph (b) of the foregoing subsection are shown so far as regards non-use of the trade mark in relation to goods to be sold, or otherwise traded in, in a particular place in the United Kingdom (otherwise than

for export from the United Kingdom), or in relation to goods to be exported to a particular market outside the United Kingdom; and

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- (b) a person has been permitted under section twenty-one of the principal Act to register an identical or nearly resembling trade mark in respect of those goods under a registration extending to use in relation to goods to be sold, or otherwise traded in, in that place (otherwise than for export from the United Kingdom), or in relation to goods to be exported to that market, or the tribunal is of opinion that he might properly be permitted so to register such a trade mark;

on application by that person to the Court or, at the option of the applicant and subject to the provisions of subsection (2) of section twenty-six of this Act, to the Registrar, the tribunal may impose on the registration of the first-mentioned trade mark such limitations as it thinks proper for securing that that registration shall cease to extend to such use as last aforesaid.

(3) An applicant shall not be entitled to rely for the purposes of paragraph (b) of subsection (1), or for the purposes of subsection (2), of this section on any non-use of a trade mark which is shown to have been due to special circumstances in the trade and not to any intention not to use or to abandon the trade mark in relation to the goods to which the application relates.

(4) The foregoing provisions of this section shall have effect in substitution for the provisions of section thirty-seven of the principal Act and accordingly that section shall be repealed.

13.—(1) Where a trade mark consisting of an invented word or invented words has become so well known as respects any goods in respect of which it is registered and in relation to which it has been used that the use thereof in relation to other goods would be likely to be taken as indicating a connection in the course of trade between those goods and a person entitled to use the trade mark in relation to the first-mentioned goods, then, notwithstanding that the proprietor registered in respect of the first-mentioned goods does not use or propose to use the trade mark in relation to those other

Defensive
trade marks.

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(2) The registered proprietor of a trade mark may apply for the registration thereof in respect of any goods as a defensive trade mark notwithstanding that it is already registered in his name in respect of those goods otherwise than as a defensive trade mark, or may apply for the registration thereof in respect of any goods otherwise than as a defensive trade mark notwithstanding that it is already registered in his name in respect of those goods as a defensive trade mark, in lieu in each case of the existing registration.

(3) A trade mark registered as a defensive trade mark and that trade mark as otherwise registered in the name of the same proprietor shall, notwithstanding that the respective registrations are in respect of different goods, be deemed to be, and shall be registered as, associated trade marks.

(4) On application by any person aggrieved to the Court or, at the option of the applicant and subject to the provisions of subsection (2) of section twenty-six of this Act, to the Registrar, the registration of a trade mark as a defensive trade mark may be cancelled on the ground that the requirements of subsection (1) of this section are no longer satisfied in respect of any goods in respect of which the trade mark is registered in the name of the same proprietor otherwise than as a defensive trade mark, or may be cancelled as respects any goods in respect of which it is registered as a defensive trade mark on the ground that there is no longer any likelihood that the use of the trade mark in relation to those goods would be taken as giving the indication mentioned in subsection (1) of this section.

(5) The Registrar may at any time cancel the registration as a defensive trade mark of a trade mark of which there is no longer any registration in the name of the same proprietor otherwise than as a defensive trade mark.

(6) Except as otherwise expressly provided in this section, the provisions of the Trade Marks Acts shall apply in respect of the registration of trade marks as defensive trade marks and of trade marks so registered as they apply in other cases. A.D. 1937.

14.—(1) The application in the United Kingdom of a trade mark to goods to be exported from the United Kingdom, and any other act done in the United Kingdom in relation to goods to be so exported which, if done in relation to goods to be sold or otherwise traded in within the United Kingdom, would constitute use of a trade mark therein, shall be deemed to constitute use of the trade mark in relation to those goods for any purpose for which such use is material under the Trade Marks Acts or at common law. Use of trade mark for export trade, and use where form of trade connection changes.

This subsection shall be deemed to have had effect in relation to an act done before the date of the commencement of this Act as it has effect in relation to an act done after that date, without prejudice however to any determination of a competent tribunal which has been made before that date or to the determination of any appeal from a determination so made.

(2) The use of a registered trade mark in relation to goods between which and the person using it any form of connection in the course of trade subsists shall not be deemed to be likely to cause deception or confusion on the ground only that the trade mark has been, or is, used in relation to goods between which and that person or a predecessor in title of his a different form of connection in the course of trade subsisted or subsists.

15.—(1) Subject to the provisions of subsections (2) to (4) of this section, and of sections forty-one and forty-four of the principal Act, the registration (whether before or after the commencement of this Act) of a person in Part A of the register as proprietor of a trade mark (other than a certification trade mark) in respect of any goods shall, if valid, give or be deemed to have given to that person the exclusive right to the use of the trade mark in relation to those goods and, without prejudice to the generality of the foregoing words, that right shall be deemed to be infringed by any person who, not being the proprietor of the trade mark or a registered Effect of registration in Part A of the register.

A.D. 1937. — user thereof using by way of the permitted use, uses a mark identical with it or so nearly resembling it as to be likely to deceive or cause confusion, in the course of trade, in relation to any goods in respect of which it is registered, and in such manner as to render the use of the mark likely to be taken either—

- (a) as being use as a trade mark; or
- (b) in a case in which the use is use upon the goods or in physical relation thereto or in an advertising circular, or other advertisement, issued to the public, as importing a reference to some person having the right either as proprietor or as registered user to use the trade mark or to goods with which such a person as aforesaid is connected in the course of trade.

(2) The right to the use of a trade mark given by registration as aforesaid shall be subject to any conditions or limitations entered on the register, and shall not be deemed to be infringed by the use of any such mark as aforesaid in any mode, in relation to goods to be sold or otherwise traded in in any place, in relation to goods to be exported to any market, or in any other circumstances, to which, having regard to any such limitations, the registration does not extend.

(3) The right to the use of a trade mark given by registration as aforesaid shall not be deemed to be infringed by the use of any such mark as aforesaid by any person—

- (a) in relation to goods connected in the course of trade with the proprietor or a registered user of the trade mark if, as to those goods or a bulk of which they form part, the proprietor or the registered user conforming to the permitted use has applied the trade mark and has not subsequently removed or obliterated it, or has at any time expressly or impliedly consented to the use of the trade mark; or
- (b) in relation to goods adapted to form part of, or to be accessory to, other goods in relation to which the trade mark has been used without infringement of the right given as aforesaid or might for the time being be so used, if the use of the mark is reasonably necessary in order to indicate

that the goods are so adapted and neither the purpose nor the effect of the use of the mark is to indicate otherwise than in accordance with the facts a connection in the course of trade between any person and the goods.

A.D. 1937.
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(4) The use of a registered trade mark, being one of two or more registered trade marks which are identical or nearly resemble each other, in exercise of the right to the use of that trade mark given by registration as aforesaid, shall not be deemed to be an infringement of the right so given to the use of any other of those trade marks.

(5) The foregoing provisions of this section shall have effect in substitution for the provisions of section thirty-nine of the principal Act, and accordingly that section shall be repealed.

16.—(1) Except as provided by subsection (2) of this section and by subsection (2) of section three of this Act, the registration (whether before or after the commencement of this Act) of a person in Part B of the register as proprietor of a trade mark in respect of any goods shall, if valid, give or be deemed to have given to that person the like right in relation to those goods as if the registration had been in Part A of the register, and the provisions of the last foregoing section shall have effect in like manner in relation to a trade mark registered in Part B of the register as they have effect in relation to a trade mark registered in Part A of the register.

Effect of
registration
in Part B
of the
register.

(2) In any action for infringement of the right to the use of a trade mark given by registration as aforesaid in Part B of the register, no injunction or other relief shall be granted to the plaintiff if the defendant establishes to the satisfaction of the Court that the use of which the plaintiff complains is not likely to deceive or cause confusion or to be taken as indicating a connection in the course of trade between the goods and some person having the right either as proprietor or as registered user to use the trade mark.

(3) The foregoing provisions of this section shall have effect in substitution for the provisions of section four of the Trade Marks Act, 1919, and accordingly that section shall be repealed.

A.D. 1937.

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Infringe-
ment of
trade mark
by breach
of certain
restrictions.

17.—(1) Where, by a contract in writing made with the proprietor or a registered user of a registered trade mark, a purchaser or owner of goods enters into an obligation to the effect that he will not do, in relation to the goods, an act to which this section applies, any person who, being the owner for the time being of the goods and having notice of the obligation, does that act, or authorises it to be done, in relation to the goods in the course of trade or with a view to any dealing therein in the course of trade, shall be deemed thereby to infringe the right to the use of the trade mark given by the registration thereof, unless that person became the owner of the goods by purchase for money or money's worth in good faith before receiving notice of the obligation or by virtue of a title derived through another who so became the owner thereof.

(2) The acts to which this section applies are—

- (a) the application of the trade mark upon the goods after they have suffered alteration in any manner specified in the contract as respects their state or condition, get-up or packing;
- (b) in a case in which the trade mark is upon the goods, the alteration, partial removal or partial obliteration thereof;
- (c) in a case in which the trade mark is upon the goods, and there is also thereon other matter, being matter indicating a connection in the course of trade between the proprietor or registered user and the goods, the removal or obliteration, whether wholly or partially, of the trade mark unless that other matter is wholly removed or obliterated;
- (d) in a case in which the trade mark is upon the goods, the application of any other trade mark to the goods;
- (e) in a case in which the trade mark is upon the goods, the addition to the goods of any other matter in writing that is likely to injure the reputation of the trade mark.

(3) Subsection (2) of section sixteen of this Act shall not apply to an act that is deemed by virtue of this

section to be an infringement of a trade mark registered in Part B of the register. A.D. 1937.

(4) In this section references in relation to any goods to the proprietor, to a registered user, and to the registration, of a trade mark shall be construed, respectively, as references to the proprietor in whose name the trade mark is registered, to a registered user who is registered, and to the registration of the trade mark, in respect of those goods, and the expression "upon" includes in relation to any goods a reference to physical relation thereto.

18.—(1) A mark adapted in relation to any goods to distinguish in the course of trade goods certified by any person in respect of origin, material, mode of manufacture, quality, accuracy or other characteristic, from goods not so certified shall be registrable as a certification trade mark in Part A of the register in respect of those goods in the name, as proprietor thereof, of that person :

Certification trade marks.

Provided that a mark shall not be so registrable in the name of a person who carries on a trade in goods of the kind certified.

In determining whether a mark is adapted to distinguish as aforesaid, the tribunal may have regard to the extent to which—

- (a) the mark is inherently adapted to distinguish as aforesaid in relation to the goods in question; and
- (b) by reason of the use of the mark or of any other circumstances, the mark is in fact adapted to distinguish as aforesaid in relation to the goods in question.

(2) Subject to the provisions of subsections (3) to (5) of this section, and of sections forty-one and forty-four of the principal Act, the registration of a person as proprietor of a certification trade mark in respect of any goods, shall, if valid, give to that person the exclusive right to the use of the trade mark in relation to those goods, and, without prejudice to the generality of the foregoing words, that right shall be deemed to be infringed by any person who, not being the proprietor of the trade mark or a person authorised by him under the regulations in that behalf using it in accordance

A.D. 1937. — therewith, uses a mark identical with it or so nearly resembling it as to be likely to deceive or cause confusion in the course of trade, in relation to any goods in respect of which it is registered, and in such manner as to render the use of the mark likely to be taken either—

(a) as being use as a trade mark; or

(b) in a case in which the use is use upon the goods or in physical relation thereto or in an advertising circular, or other advertisement, issued to the public, as importing a reference to some person having the right either as proprietor or by his authorisation under the relevant regulations to use the trade mark or to goods certified by the proprietor.

(3) The right to the use of a certification trade mark given by registration as aforesaid shall be subject to any conditions or limitations entered on the register, and shall not be deemed to be infringed by the use of any such mark as aforesaid in any mode, in relation to goods to be sold or otherwise traded in in any place, in relation to goods to be exported to any market, or in any other circumstances, to which, having regard to any such limitations, the registration does not extend.

(4) The right to the use of a certification trade mark given by registration as aforesaid shall not be deemed to be infringed by the use of any such mark as aforesaid by any person—

(a) in relation to goods certified by the proprietor of the trade mark if, as to those goods or a bulk of which they form part, the proprietor or another in accordance with his authorisation under the relevant regulations has applied the trade mark and has not subsequently removed or obliterated it, or the proprietor has at any time expressly or impliedly consented to the use of the trade mark; or

(b) in relation to goods adapted to form part of, or to be accessory to, other goods in relation to which the trade mark has been used without infringement of the right given as aforesaid or might for the time being be so used, if the use of the mark is reasonably necessary in order to indicate that the goods are so adapted and

neither the purpose nor the effect of the use of the mark is to indicate otherwise than in accordance with the fact that the goods are certified by the proprietor: A.D. 1937.

Provided that paragraph (a) of this subsection shall not have effect in the case of use consisting of the application of any such mark as aforesaid to any goods, notwithstanding that they are such goods as are mentioned in that paragraph, if such application is contrary to the relevant regulations.

(5) Where a certification trade mark is one of two or more registered trade marks which are identical or nearly resemble each other, the use of any of those trade marks in exercise of the right to the use of that trade mark given by registration shall not be deemed to be an infringement of the right so given to the use of any other of those trade marks.

(6) There shall be deposited at the Patent Office in respect of every trade mark registered under this section regulations approved by the Board of Trade for governing the use thereof, which shall include provisions as to the cases in which the proprietor is to certify goods and to authorise the use of the trade mark, and may contain any other provisions which the Board of Trade may require or permit to be inserted therein (including provisions conferring a right of appeal to the Registrar against any refusal of the proprietor to certify goods or to authorise the use of the trade mark in accordance with the regulations). Regulations so deposited shall be open to inspection in like manner as the register.

(7) The provisions of the First Schedule to this Act shall have effect with respect to the registration of a mark under this section and as to marks so registered.

(8) Section sixty-two of the principal Act shall be repealed.

(9) The foregoing provisions of this section shall have effect, in relation to a trade mark which immediately before the commencement of this Act is on the register by virtue of section sixty-two of the principal Act, as if this section had been in force at the date of the registration of the trade mark and it had been registered under this

A.D. 1937. — section, subject however to the following modifications, that is to say:—

- (a) the proviso to subsection (1) shall not apply;
- (b) in a case in which regulations for governing the use of the trade mark are deposited at the Patent Office at the commencement of this Act, those regulations shall be deemed to have been deposited under this section;
- (c) in a case in which no such regulations are deposited at the commencement of this Act, the proprietor shall be at liberty, or may be required by the Board of Trade as a condition of the continuance of the registration, to deposit at any time thereafter such regulations as the Board may permit or require; and
- (d) in a case in which no such regulations are for the time being deposited, this section and the First Schedule to this Act shall have effect as if references therein to the regulations had been omitted.

Sheffield
marks.

19. The provisions of the Second Schedule to this Act shall have effect, in substitution for the provisions of section sixty-three of the principal Act, with respect to the master, wardens, searchers, assistants, and commonalty of the Company of Cutlers in Hallamshire, in the county of York (in this Act called "the Cutlers' Company") and the marks or devices assigned or registered by the master, wardens, searchers and assistants of that Company, and accordingly that section shall be repealed.

Trade
marks
for textile
goods.

20.—(1) The Manchester Branch of the Trade Marks Registry of the Patent Office (in this Act referred to as "the Manchester Branch") shall be continued under a chief officer, who shall be styled "the Keeper of the Manchester Branch" and shall act under the direction of the Registrar.

(2) The rules shall specify certain of the classes for the time being established for the purposes of the registration of trade marks (being such of those classes as consist of, or appear to the Board of Trade to relate materially to, any of the following goods, that is to say, goods included immediately before the commencement of this Act in any of the classes numbered

twenty-three to thirty-five and thirty-eight respectively and similar goods made from artificial silk or from other artificial fibres) as being classes to which this section applies. A.D. 1937.
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In this section the expression "textile goods" means goods of any of the classes for the time being so specified other than goods of a kind as to which it may be provided by the rules that this section is not to apply thereto.

(3) The rules for prescribing the manner in which applications for the registration of trade marks are to be made shall make provision for the sending of an application for the registration of a trade mark in respect of textile goods to the Registrar either at the Patent Office or at the Manchester Branch, at the option of the applicant.

(4) The Keeper of the Manchester Branch shall furnish the Registrar with a report on every application for the registration of a trade mark sent to the Manchester Branch, and before deciding under subsection (2) of section twelve of the principal Act on any such application the Registrar shall consider the report.

(5) In respect of textile goods being piece goods—

- (a) no mark consisting of a line heading alone shall be registrable as a trade mark;
- (b) a line heading shall not be deemed to be adapted to distinguish or capable of distinguishing;
- (c) the registration of a trade mark shall not give any exclusive right to the use of a line heading.

(6) There shall be kept at the Manchester Branch for the purposes of the Trade Marks Acts a record, called the Manchester Record, wherein shall be entered copies of all entries in the register relating to trade marks registered in respect of textile goods after the date of the commencement of this Act, and, as soon as may be after that date, copies of all entries relating to trade marks so registered before that date and for the time being subsisting, and the Manchester Record shall at all convenient times be open to the inspection of the public, subject to such regulations as may be prescribed.

A.D. 1937.

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38 & 39 Vict.
c. 91.

(7) The right of inspection conferred by the last foregoing subsection shall extend to and include the right to inspect all applications whatsoever for registration that have been made to the Manchester Branch, between the passing of the Trade Marks Registration Act, 1875, and the commencement of this Act, in respect of cotton goods, whether registered, refused, lapsed, expired, withdrawn, abandoned, cancelled or pending.

(8) Refused marks which, at the commencement of this Act, are included in the collection of refused marks kept under rules one hundred and twelve to one hundred and sixteen of the Trade Marks Rules, 1920, and are at the time of the application for the registration of a trade mark included in that collection under the rules, shall be treated for the purposes of sections nineteen and twenty-one of the principal Act, but for no other purpose, as if they had been registered trade marks.

(9) Before making any rule, or prescribing any form, which is to deal specially with trade marks registered or proposed to be registered in respect of textile goods other than clothing, the Board of Trade shall send a draft thereof to the Trade and Merchandise Marks Committee of the Manchester Chamber of Commerce, and shall, if the said committee so request, give them an opportunity of being heard.

(10) The Registrar, or the Keeper of the Manchester Branch, may consult the said committee where it appears to him to be expedient so to do with respect to any circumstances peculiar to the cotton trade arising on an application to register a trade mark in respect of textile goods other than clothing.

(11) A certificate purporting to be under the hand of the Keeper of the Manchester Branch as to any copy entered in the Manchester Record of an entry in the register shall be prima facie evidence of the entry having been made in the register and of the contents thereof.

(12) The foregoing provisions of this section shall have effect in substitution for the provisions of section sixty-four of the principal Act, and accordingly that section and the Trade Marks Act, 1914, shall be repealed.

21.—(1) Any person who makes a representation— A.D. 1937.

- (a) with respect to a mark not being a registered trade mark, to the effect that it is a registered trade mark; or
 - (b) with respect to a part of a registered trade mark not being a part separately registered as a trade mark, to the effect that it is so registered; or
 - (c) to the effect that a registered trade mark is registered in respect of any goods in respect of which it is not registered; or
 - (d) to the effect that the registration of a trade mark gives an exclusive right to the use thereof in any circumstances in which, having regard to limitations entered on the register, the registration does not give that right;
- Penalty for falsely representing a trade mark as registered.

shall be liable on summary conviction to a fine not exceeding five pounds.

(2) For the purposes of this section, the use in the United Kingdom in relation to a trade mark of the word “registered”, or of any other word referring whether expressly or impliedly to registration, shall be deemed to import a reference to registration in the register, except—

- (a) where that word is used in physical association with other words delineated in characters at least as large as those in which that word is delineated and indicating that the reference is to registration as a trade mark under the law of a country outside the United Kingdom, being a country under the law of which the registration referred to is in fact in force;
- (b) where that word (being a word other than the word “registered”) is of itself such as to indicate that the reference is to such registration as last aforesaid; or
- (c) where that word is used in relation to a mark registered as a trade mark under the law of a country outside the United Kingdom and in relation to goods to be exported to that country.

A.D. 1937.

(3) The foregoing provisions of this section shall have effect in substitution for the provisions of section sixty-seven of the principal Act and accordingly that section shall be repealed.

Minor and Consequential Amendments and General.

Power to
adapt
entries in
register to
amended or
substituted
classifica-
tion of
goods.

22.—(1) The power to make rules and other powers conferred on the Board of Trade by section sixty of the principal Act for the purposes therein mentioned (which include the classifying of goods for the purposes of the registration of trade marks) may be exercised for empowering the Registrar to amend the register, whether by making or expunging or varying entries therein, so far as may be requisite for the purpose of adapting the designation therein of the goods or classes of goods in respect of which trade marks are registered to any amended or substituted classification which may be prescribed.

(2) The Registrar shall not, in exercise of any power conferred on him for the purpose aforesaid, make any amendment of the register which would have the effect of adding any goods or classes of goods to those for which a trade mark is registered (whether in one or more classes) immediately before the amendment is to be made, or of antedating the registration of a trade mark in respect of any goods :

Provided that this subsection shall not have effect in relation to goods as to which the Registrar is satisfied that compliance with this subsection in relation thereto would involve undue complexity and that the addition or antedating, as the case may be, would not affect any substantial quantity of goods and would not substantially prejudice the rights of any person.

(3) A proposal for the amendment of the register for the purpose aforesaid shall be notified to the registered proprietor of the trade mark affected, shall be subject to appeal by the registered proprietor to the Board of Trade, or, at his option, to the Court, shall be advertised with any modifications, and may be opposed before the Registrar by any person aggrieved on the ground that the proposed amendment contravenes the provisions of the last foregoing subsection, and the decision of the Registrar on any such opposition shall be subject to appeal to the Court.

23. On application by any person aggrieved to the Court or, at the option of the applicant and subject to the provisions of subsection (2) of section twenty-six of this Act, to the Registrar, or on application by the Registrar to the Court, the tribunal may make such order as it may think fit for expunging or varying the registration of a trade mark on the ground of any contravention of, or failure to observe, a condition entered on the register in relation thereto.

A.D. 1937.

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Removal of
trade mark
from
register for
breach of
condition.

24. The following provisions of the principal Act (which relate to trade marks used before the thirteenth day of August, eighteen hundred and seventy-five) shall be repealed:—

Repeal of
provisions
relating to
old trade
marks.

- (a) in section nine, the proviso;
- (b) in section nineteen, the words “ or in the case of
“ trade marks in use before the thirteenth day
“ of August, one thousand eight hundred and
“ seventy-five ”;
- (c) in section forty-two, the words from “ unless
“ such trade mark was in use before the
“ thirteenth day of August, one thousand eight
“ hundred and seventy-five ” to the end of the
section.

25. Where the relations between two or more persons interested in a trade mark are such that no one of them is entitled as between himself and the other or others of them to use it except—

Jointly
owned trade
marks.

- (a) on behalf of both or all of them, or
- (b) in relation to an article with which both or all of them are connected in the course of trade,

those persons may be registered as joint proprietors of the trade mark, and the Trade Marks Acts shall have effect in relation to any rights to the use of the trade mark vested in those persons as if those rights had been vested in a single person.

Subject as aforesaid nothing in the Trade Marks Acts shall authorise the registration of two or more persons who use a trade mark independently, or propose so to use it, as joint proprietors thereof.

A.D. 1937.

Options as
to tribunal
for certain
appeals and
applica-
tions.

26.—(1) Where under the principal Act a right of appeal to the Board of Trade is conferred upon any person, he shall be entitled, at his option, to appeal to the Court instead of to the Board.

(2) Where under any of the foregoing provisions of this Act an applicant has an option to make an application either to the Court or to the Registrar—

(a) if an action concerning the trade mark in question is pending, the application must be made to the Court;

(b) if in any other case the application is made to the Registrar, he may, at any stage of the proceedings, refer the application to the Court, or he may, after hearing the parties, determine the question between them, subject to appeal to the Court.

Interpreta-
tion of pro-
viso to s. 27
of principal
Act.

27. It is hereby declared that the provisions of section twenty-seven of the principal Act relating to the acceptance by tribunals of certain matters as proof of use of a registered trade mark apply in relation to proof of use of any registered trade mark and not in relation only to proof of use of a trade mark which is one of two or more associated trade marks.

Extension
of s. 44 of
principal
Act to old
registra-
tions.

28. Section forty-four of the principal Act (which provides that no registration under the principal Act shall interfere with any bona fide use by a person of his own name or of the name of his place of business, or with the use by any person of any bona fide description of the character or quality of his goods) shall have effect in relation to a registration of a trade mark under any Act previous to the principal Act.

Amendment
of s. 48 of
principal
Act.

29. In section forty-eight of the principal Act (which provides that in all proceedings before the Court under that Act the costs of the Registrar shall be in the discretion of the Court but the Registrar shall not be ordered to pay the costs of any other party) after the word “but” there shall be inserted the words “in any proceedings in England or Northern Ireland”, after the word “not” there shall be inserted the words “except in accordance with the provisions of subsection (2) of this section in

“ a case in which he has appeared in the proceedings”, and at the end of the section there shall be inserted the following subsection— A.D. 1937.

“(2) Where the Registrar appears in any proceedings before the Court in England or Northern Ireland under this Act, section seven of the Administration of Justice (Miscellaneous Provisions) Act, 1933, or any corresponding enactment which may be passed by the Parliament of Northern Ireland, as the case may be, shall have effect as it has effect in relation to other proceedings to which the Crown is a party in a Court having the power to award costs in cases between subjects.”

30. The amendments specified in the second column of the Third Schedule to this Act, being as respects those contained in Part I of the said Schedule consequential amendments and as respects those contained in Part II of the said Schedule amendments relating to minor details, shall be made in the enactments specified in the first column of the said Schedule. Consequential and minor amendments.

31.—(1) In the Trade Marks Acts, unless the context otherwise requires, the following expressions have the meaning hereby assigned to them respectively, that is to say :— Interpretation.

“assignment” means assignment by act of the parties concerned ;

“limitations” means any limitations of the exclusive right to the use of a trade mark given by the registration of a person as proprietor thereof, including limitations of that right as to mode of use, as to use in relation to goods to be sold, or otherwise traded in, in any place within the United Kingdom, or as to use in relation to goods to be exported to any market outside the United Kingdom ;

“registered user” means a person who is for the time being registered as such under section eight of this Act ;

“the rules” means rules made by the Board of Trade under section sixty of the principal Act ;

A.D. 1937.
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“transmission” means transmission by operation of law, devolution on the personal representative of a deceased person, and any other mode of transfer not being assignment;

“United Kingdom” includes the Isle of Man.

(2) In the application of the Trade Marks Acts to Scotland the expressions “injunction,” “plaintiff” and “defendant” mean respectively “interdict,” “pursuer” and “defender.”

Savings.

32.—(1) Nothing in this Act shall be taken to invalidate the original registration of a trade mark which immediately before the commencement of this Act was validly upon the register.

(2) No trade mark which is upon the register at the date of the commencement of this Act, and which, having regard to any amendment by this Act of the principal Act or of the Trade Marks Act, 1919, whether as respects limitations which may be imposed on registration or as respects any other matter, is under the Trade Marks Acts a registrable trade mark at that date, shall be removed from the register on the ground that it was not registrable under the Acts in force at the date of its registration.

(3) Notwithstanding the repeal by this Act of paragraph (c) of subsection (10) of section sixty-four of the principal Act, no registration as of a date before the date of the commencement of this Act of a cotton mark as defined in that section in respect of cotton piece goods or cotton yarn shall give any exclusive right to the use of any letter, numeral, line heading, or any combination thereof.

(4) Nothing in this Act shall subject any person to any liability in respect of any act or thing done before the commencement of this Act to which he would not have been subject under the Acts then in force.

Short title,
citation,
construc-
tion, repeal
and
commence-
ment.

33.—(1) This Act may be cited as the Trade Marks (Amendment) Act, 1937.

(2) This Act shall be construed as one with the principal Act, the Trade Marks Act, 1919, and so much of the Patents and Designs Acts, 1907 to 1932, as relates to trade marks, and this Act and those enactments may be cited together as the Trade Marks Acts, 1905 to 1937,

and are in this Act together referred to as "the Trade Marks Acts." A.D. 1937.

(3) References in this Act to any enactment shall be construed as references to that enactment as amended by any subsequent enactment, including, except where the context otherwise requires, this Act.

(4) The enactments specified in the Fourth Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

(5) This Act shall come into operation on such date as the Board of Trade may by order appoint.

A.D. 1937.

SCHEDULES.

Section 18.

FIRST SCHEDULE.

CERTIFICATION TRADE MARKS.

1.—(1) An application for the registration of a mark under section eighteen of this Act must be made to the Registrar in writing in the prescribed manner by the person proposed to be registered as the proprietor thereof.

(2) The provisions of subsections (2) to (6) of section twelve of the principal Act shall have effect in relation to an application under the said section eighteen as they have effect in relation to an application under subsection (1) of the said section twelve, except that for references therein to acceptance of an application there shall be substituted references to authorisation to proceed with the application.

(3) In dealing under the said provisions with an application under the said section eighteen, the tribunal shall have regard to the like considerations, so far as relevant, as if the application were an application under section twelve of the principal Act and to any other considerations (not being matters within the competence of the Board of Trade under subparagraph (5) of this paragraph) relevant to applications under the said section eighteen, including the desirability of securing that a certification trade mark shall comprise some indication that it is such a trade mark.

(4) An applicant for the registration of a mark under the said section eighteen shall transmit to the Registrar draft regulations for governing the use thereof at such time before the decision of the Registrar on the application as he may require in order to enable him to consider the draft, and the Registrar shall report thereon to the Board of Trade.

(5) When authorisation to proceed with an application has been given, the Board of Trade shall consider the application with regard to the following matters, that is to say:—

- (a) whether the applicant is competent to certify the goods in respect of which the mark is to be registered;
- (b) whether the draft regulations are satisfactory; and
- (c) whether in all the circumstances the registration applied for would be to the public advantage;

and may either—

- (i) direct that the application shall not be accepted; or
- (ii) direct the Registrar to accept the application, and approve the regulations, either without modification and unconditionally or subject to any conditions or limitations, or to any amendments or modifications of the application or of the regulations, which they think requisite having regard to any of the matters aforesaid;

but, except in the case of a direction for acceptance and approval without modification and unconditionally, the Board shall not decide the matter without giving to the applicant an opportunity of being heard :

Provided that the Board may, at the request of the applicant made with the concurrence of the Registrar, consider the application with regard to any of the matters aforesaid before authorisation to proceed with the application has been given, so however that the Board shall be at liberty to reconsider any matter on which they have given a decision under this proviso if any amendment or modification is thereafter made in the application or in the draft regulations.

2.—(1) When an application has been accepted, the Registrar shall, as soon as may be after such acceptance, cause the application as accepted to be advertised in the prescribed manner, and the provisions of section fourteen of the principal Act (which relates to opposition to registration) shall have effect in relation to the registration of the mark as if the application had been an application under section twelve of that Act :

Provided that, in deciding under the said provisions, the tribunal shall have regard only to the considerations referred to in subparagraph (3) of the last foregoing paragraph, and a decision under the said provisions in favour of the applicant shall be conditional on the determination in his favour by the Board of Trade under subparagraph (2) of this paragraph of any opposition relating to any of the matters referred to in subparagraph (5) of the last foregoing paragraph.

(2) When notice of opposition is given relating to any of the matters referred to in subparagraph (5) of the last foregoing paragraph, the Board of Trade shall, after hearing the parties, if so required, and considering any evidence, decide whether, and subject to what conditions or limitations, or amendments or modifications of the application or of the regulations, if any, registration is, having regard to those matters, to be permitted.

3.—(1) The regulations deposited in respect of a certification trade mark may on the application of the registered proprietor be altered by the Registrar with the consent of the Board of Trade.

A.D. 1937.

—
1ST SCH.
—cont.

A.D. 1937.

—
1st SCH.
—cont.

(2) The Board of Trade may cause an application for their consent to be advertised in any case where it appears to the Board that it is expedient so to do, and, where the Board cause an application to be advertised, if within the prescribed time from the date of the advertisement any person gives notice to the Board of opposition to the application, the Board shall not decide the matter without giving the parties an opportunity of being heard.

4. A certification trade mark shall not be assignable or transmissible otherwise than with the consent of the Board of Trade.

5.—(1) The Board of Trade may, on the application in the prescribed manner of any person aggrieved, or on the application of the Registrar, make such order as they think fit for expunging or varying any entry in the register relating to a certification trade mark, or for varying the deposited regulations, on the ground—

- (a) that the proprietor is no longer competent, in the case of any of the goods in respect of which the trade mark is registered, to certify those goods;
- (b) that the proprietor has failed to observe a provision of the deposited regulations to be observed on his part;
- (c) that it is no longer to the public advantage that the trade mark should be registered; or
- (d) that it is requisite for the public advantage that, if the trade mark remains registered, the regulations should be varied;

and neither the Court nor the Registrar shall have any jurisdiction to make an order under section thirty-five of the principal Act on any of those grounds.

(2) The Registrar shall rectify the register and the deposited regulations in such manner as may be requisite for giving effect to an order made under the foregoing subparagraph.

6. The Registrar shall not have any jurisdiction to award costs to or against any party on an appeal to him against a refusal of the proprietor of a certification trade mark to certify goods or to authorise the use of the trade mark.

7. The following provisions of the Trade Marks Acts shall not have effect in relation to a certification trade mark, that is to say:—

- (a) section nine and sections twelve to fourteen of the principal Act (except as expressly applied by this Schedule);

- (b) subsections (4) to (8) of section seven, sections eight and eleven, subsections (1) to (3) of section twelve, section thirteen, subsection (2) of section fourteen, subsections (1) to (4) of section fifteen, and section seventeen of this Act; and
- (c) any provisions whose operation is limited by the terms thereof to registration in Part B of the register.

A.D. 1937.

—
1st SCH.
—cont.

SECOND SCHEDULE.

Section 19.

SHEFFIELD MARKS.

1. The Cutlers' Company shall continue to keep at Sheffield the register of trade marks (in this Schedule called "the Sheffield register") kept by them at the date of the commencement of this Act, and, save as otherwise provided by this Schedule, such register shall for all purposes form part of the register.

2. An application by a person carrying on business in Hallamshire, or within six miles thereof, for the registration of a trade mark in respect of metal goods may be made either to the Registrar or to the Cutlers' Company, at the option of the applicant.

3. An application for the registration of a trade mark made to the Cutlers' Company shall be notified to the Registrar in the prescribed manner and the Cutlers' Company shall not proceed with such an application until authorised so to do by the Registrar.

4. The Registrar shall consider an application notified to him as aforesaid and shall either authorise the Cutlers' Company to proceed therewith or, if it appears to him that there is any objection to the application, shall give notice of his objection to the Cutlers' Company, who shall communicate it to the applicant.

5. Within the prescribed time after receipt of a notice of objection under the last foregoing paragraph, the applicant may submit to the Cutlers' Company either orally or in writing arguments against, or proposals for meeting, the objection, and the Cutlers' Company shall notify to the Registrar any arguments or proposals so submitted to them together with any observations which they may desire to make thereon.

6. The Registrar shall consider any arguments, proposals or observations notified to him as aforesaid and shall, if so required by an applicant who has submitted arguments or proposals as aforesaid, give the applicant an opportunity of being

A.D. 1937. heard by him, and may refuse authorisation to proceed with the application or may authorise the Cutlers' Company to proceed therewith either without modification and unconditionally or subject to such conditions, amendments or modifications, or to such limitations, if any, as he may think right to impose.

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2ND SCH.
—cont.

7. Where the Registrar refuses authorisation to proceed with an application, or authorises the Cutlers' Company to proceed therewith subject as aforesaid, the provisions of subsections (3) to (5) of section twelve of the principal Act shall have effect in relation to the refusal or conditional authorisation as they have effect in relation to a refusal to accept, or a conditional acceptance of, an application, except that for references therein to acceptance of the application there shall be substituted references to authorisation to the Cutlers' Company to proceed with the application.

8. Upon the registration of a trade mark in the Sheffield register, the Cutlers' Company shall give notice thereof to the Registrar, who shall thereupon enter the trade mark in the register, and such registration shall bear date as of the day of the application to the Cutlers' Company, and have the same effect as if the application had been made to the Registrar on that day.

9. The provisions of the Trade Marks Acts and of the rules with respect to the registration of trade marks, and all matters relating thereto, shall, subject to the provisions of this Schedule (and notwithstanding anything in any Act relating to the Cutlers' Company), apply to the registration of trade marks in respect of metal goods by the Cutlers' Company, and to all matters relating thereto, and the Trade Marks Acts and the rules shall, so far as applicable, be construed accordingly with the substitution of the Cutlers' Company, the office of the Cutlers' Company, and the Sheffield register, for the Registrar, the Patent Office, and the register respectively, and notice of every entry, cancellation, or correction made in the Sheffield register shall be given to the Registrar by the Cutlers' Company :

Provided that anything which by virtue of this Schedule is required or authorised to be done by, before or in relation to the Cutlers' Company or at their office may, with the consent of the party or parties concerned, be done by, before or in relation to the Registrar or at the Patent Office, as the case may be.

10. When the Registrar receives an application for the registration of a trade mark in respect of metal goods, he shall in the prescribed manner notify the application and proceedings thereon to the Cutlers' Company.

11. Any person aggrieved by a decision of the Cutlers' Company in respect of anything done or omitted under the

Trade Marks Acts may, in the prescribed manner, appeal to the Court or, in a case in which, if the decision had been a decision of the Registrar, the person aggrieved would have had an option under the Trade Marks Acts of appealing to the Board of Trade, to the Court or the Board at the option of the appellant.

A.D. 1937.

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2ND SOH.
—cont.

12.—(1) For the purposes of this Schedule the expression “metal goods” means all metals, whether wrought, unwrought, or partly wrought, and all goods which are comprised in any of such classes as may be prescribed as being classes which refer predominantly to metal goods, and are goods composed wholly or principally of any metal, and for the purpose of determining whether any goods are goods principally of any metal regard shall be had to the importance and nature of the metal part or parts of the goods having regard to the purposes for which the goods are adapted.

(2) Any question arising in connection with an application made to the Cutlers’ Company for the registration of a trade mark, as to whether the goods in respect of which the trade mark is proposed to be registered are metal goods, shall be referred to and determined by the Registrar, whose decision shall be final.

(3) The validity of the registration by the Cutlers’ Company of a trade mark shall not be questioned on the ground only that the goods in respect of which it is so registered are not metal goods.

13. A certificate purporting to be under the hand of the master of the Cutlers’ Company as to any entry, matter or thing which the Cutlers’ Company are authorised by this Schedule or the rules to make or do shall be *prima facie* evidence of the entry having been made and of the contents thereof and of the matter or thing having been done or not done.

THIRD SCHEDULE.

Section 30.

CONSEQUENTIAL AND MINOR AMENDMENTS.

PART I.

CONSEQUENTIAL.

Enactment Amended.

Amendments.

In the principal Act:—

Section six - - After the words “forty-one of this Act” there shall be inserted the words “and
“ of section thirty-two of the Trade
“ Marks (Amendment) Act, 1937 ”.

A.D. 1937. Enactment Amended.

Amendments.

3RD SCH.
—cont. In the principal Act—
cont.

- Section twelve - - In subsection (1), there shall be inserted at the end of the subsection the words "for registration either in Part A or in Part B of the register", and in subsections (2) and (4) the words "as to mode or place of user or otherwise" shall be omitted.
- Section fourteen - - In subsections (4) and (6) the words "as to mode or place of user or otherwise" shall be omitted.
- Section sixteen - - After the words "application for registration of a trade mark" there shall be inserted the words "in Part A or in Part B of the register", and after the words "the said trade mark" there shall be inserted the words "in Part A or Part B, as the case may be".
- Section twenty - - For the words "or (on appeal) by the Board of Trade" there shall be substituted the words "or on an appeal, which may be brought either to the Board of Trade or to the Court at the option of the appellant, by the Board or the Court, as the case may be".
- Section twenty-one - - The words "as to mode or place of user or otherwise" shall be omitted.
- Section thirty-two - - After the words "shall be subject to appeal to the Board of Trade" there shall be inserted the words "or to the Court at the option of the appellant".
- Section thirty-four - - The words "as to mode or place of user" shall be omitted.
- Section forty-one - - For the words "In all legal proceedings relating to a registered trade mark (including applications under section thirty-five of this Act) the original registration of such trade mark" there shall be substituted the words

Enactment Amended.

Amendments.

A.D. 1937.

In the principal Act—
cont.

3RD SCH.
—*cont.*

Section forty-one—*cont.* “ In all legal proceedings relating to
“ a trade mark registered in Part A of
“ the register (including applications
“ under section thirty-five of this Act)
“ the original registration in Part A of
“ the register of such trade mark ”,
and for the words “ section eleven
of this Act ” there shall be substituted the words “ section six of the
“ Trade Marks (Amendment) Act,
“ 1937 ”.

Section forty-four - For the words “ under this Act ” there shall be substituted the words “ of a trade mark ”.

At the end of the section there shall be added the words “ not being a description which would be likely to be taken
“ to import any such reference as is
“ mentioned in paragraph (b) of subsection (1) of section fifteen, or in
“ paragraph (b) of subsection (2) of section eighteen, of the Trade Marks
“ (Amendment) Act, 1937.”

Section fifty-four - The words “ Except where expressly
“ given by the provisions of this Act
“ or rules made thereunder, there shall
“ be no appeal from a decision of the
“ Registrar otherwise than to the
“ Board of Trade, but ” shall be omitted.

In the Trade Marks
Act, 1919 :—

Section one - - In subsection (1), the words “ (including the Manchester Register) ” shall be omitted.

In subsection (2), there shall be inserted at the end of the subsection the words
“ either before the commencement of
“ the Trade Marks (Amendment) Act,
“ 1937, or, on an application for registration in Part A, thereafter.”

A.D. 1937. Enactment Amended.

Amendments.

3RD SCH.
—cont.In the Trade Marks
Act, 1919—cont.

Section one—cont.

In subsection (3), after the words “ this Part of this Act ” there shall be inserted the words “ or registered under “ the principal Act on an application “ for registration in Part B ”.

Section five - - The words “ under the principal Act ” and the words “ under this Part of this Act ” shall be omitted.

Section nine - - In subsection (1), the words “ or the “ removal of any trade mark from the “ register in respect of any goods”, the words “ or section thirty-seven ”, and the words “ or under Part II of this Act ”, shall be omitted.

In subsection (3), the words “ under this Act or ” shall be omitted.

PART II.

MINOR.

In the principal Act :—

Section four - - For the word “ book ” there shall be substituted the word “ record ”.

For the words “ and addresses ” there shall be substituted the words “ addresses and descriptions ”.

After the word “ transmissions ” there shall be inserted the words “ the names, “ addresses and descriptions of all “ registered users ”.

Section six - - For the word “ book ” there shall be substituted the word “ record ”.

Section eight - - The following subsection shall be added :—

“(2) Any question arising as to the class within which any goods fall shall be determined by the Registrar, whose decision shall be final.”

Section thirteen - - There shall be substituted for the proviso the following proviso :—

“ Provided that the Registrar may cause an application for registration of a trade mark to be advertised before acceptance thereof if it is

Enactment Amended.

Amendments.

A.D. 1937.

In the principal Act—
cont.

3RD SCH.
—*cont.*

Section thirteen—*cont.*

made under paragraph (5) of section nine of this Act, or in any other case where it appears to him that it is expedient by reason of any exceptional circumstances so to do, and where an application has been so advertised the Registrar may, if he thinks fit, advertise it again when it has been accepted but shall not be bound so to do."

Section fourteen - In subsection (8), for the words "In proceedings" there shall be substituted the words "On an appeal".

For subsection (11) the following subsection shall be substituted:—

"(11) If a person giving notice of opposition or an applicant sending a counter-statement after receipt of a copy of such a notice, or an appellant, neither resides nor carries on business in the United Kingdom, the tribunal may require him to give security for costs of the proceedings before it relative to the opposition or to the appeal, as the case may be, and in default of such security being duly given may treat the opposition or application, or the appeal, as the case may be, as abandoned."

Section sixteen - For the words "unless the mark has been accepted" there shall be substituted the words "unless the application has been accepted".

Section seventeen - The words "under the hand of the Registrar and" shall be omitted.

Section nineteen - For the words "Except by order of the Court" there shall be substituted the words "Except as provided by section twenty-one of this Act" and for the words "calculated to deceive" there shall be substituted the words "likely to deceive or cause confusion".

A.D. 1937. Enactment Amended.

Amendments.

3RD SCH.
—cont.In the principal Act—
cont.

Section twenty - - For the words "Where each of several
"persons claims to be the proprietor
"of the same trade mark, or of nearly
"identical trade marks in respect of
"the same goods or description of
"goods, and to be registered as such
"proprietor" there shall be substituted
the words "Where separate applica-
"tions are made by different persons
"to be registered as proprietors res-
"pectively of trade marks which are
"identical or nearly resemble each
"other, in respect of the same goods
"or description of goods,".

Section twenty-one - For the words "the same trade mark
or of nearly identical trade marks"
there shall be substituted the words
"trade marks which are identical or
nearly resemble each other".

Section twenty-six - For the words "for the same description
of goods" there shall be substituted
the words "for the same goods or
description of goods".

Section thirty - - The words "at his registered address"
shall be omitted.

Section thirty-one - There shall be substituted for the words
"unless it is shown" to the end of the
section the following proviso:—

"Provided that the foregoing pro-
visions of this section shall not have
effect where the tribunal is satisfied
either—

(a) that there has been no bona
fide trade use of the trade mark
which has been removed during
the two years immediately pre-
ceding its removal; or

(b) that no deception or confusion
would be likely to arise from
the use of the trade mark which
is the subject of the application
for registration by reason of any
previous use of the trade mark
which has been removed."

Enactment Amended.

Amendments.

A.D. 1937.

In the principal Act—
cont.

3RD SCH.
—*cont.*

Section thirty-two - The words " or by some person entitled by law to act in his name " shall be omitted, for the words " or address " there shall be substituted the words " address or description ", and the following subsection shall be added :—

" (2) The Registrar may, on request made in the prescribed manner by a registered user of a trade mark, correct any error, or enter any change, in the name, address or description of the registered user."

Section thirty-three - In subsection (1) for the words " assignment, transmission or other operation of law " there shall be substituted the words " assignment or transmission ", and for the words " trade mark, and shall cause an entry to be made in the prescribed manner on the register of the " assignment, transmission or other instrument affecting the title " there shall be substituted the words " trade mark in respect of the goods in respect of which the assignment or transmission has effect, and shall cause particulars of the assignment or transmission to be entered on the register."

Section thirty-four - For the words from " but any such refusal " to the end of the section the following subsections shall be substituted :—

" (2) The Registrar may cause an application under this section to be advertised in the prescribed manner in any case where it appears to him that it is expedient so to do and, where he does so, if within the prescribed time from the date of the advertisement any person gives notice to the Registrar in the prescribed manner of opposition to the application, the Registrar shall, after hearing the parties if so required, decide the matter."

A.D. 1937. Enactment Amended.

Amendments.

3RD SCH.
—cont.In the principal Act—
cont.

Section thirty-four—cont.

(3) Any decision of the Registrar under this section shall be subject to appeal to the Board of Trade or to the Court, at the option of the appellant.

(4) Where leave as aforesaid is granted, the trade mark as altered shall be advertised in the prescribed manner, unless it has already been advertised, in the form to which it has been altered, in an advertisement under subsection (2) of this section."

Section thirty-five - In subsection (2), for the word "Court" there shall be substituted the word "tribunal".

In subsection (3), after the word "registration" there shall be inserted the word "assignment".

Section thirty-six - After the word "is", where that word secondly occurs, there shall be inserted the word "then".

Section forty-one - The words "or seven years from the passing of this Act, whichever shall last happen" shall be omitted, and for the proviso the following subsection shall be substituted:—

"(2) Nothing in this Act shall entitle the proprietor or a registered user of a registered trade mark to interfere with or restrain the use by any person of a trade mark identical with or nearly resembling it in relation to goods in relation to which that person or a predecessor in title of his has continuously used that trade mark from a date anterior—

- (a) to the use of the first-mentioned trade mark in relation to those goods by the proprietor or a predecessor in title of his; or
- (b) to the registration of the first-mentioned trade mark in respect of those goods in the name of the proprietor or a predecessor in title of his;

Enactment Amended.

Amendments.

A.D. 1937.

In the principal Act—

3RD SCH.

cont.

—*cont.*

Section forty-one—

cont.

whichever is the earlier, or to object (on such use being proved) to that person being put on the register for that identical or nearly resembling trade mark in respect of those goods under section twenty-one of this Act."

Section forty-nine

- The words "with the consent of the parties" shall be omitted.

Section fifty-two

- After the words "secretary or" there shall be inserted the words "an under-secretary or an".

Section fifty-six

- Section fifty-six shall be repealed.

Section fifty-eight

- After the words "a secretary" there shall be inserted the words "or an under-secretary".

Section sixty

- In subsection (1), at the end of paragraph (a), there shall be inserted the words "including the service of documents."

Section seventy-one

- For the words "shall, with respect to any action or other proceeding in relation to trade marks the registration whereof is applied for in the Manchester Branch, have the like jurisdiction" there shall be substituted the words "shall, with respect to any action or other proceeding in relation to a trade mark registered or proposed to be registered pursuant to an application sent to the Manchester Branch where the registered proprietor or the proposed registered proprietor is within, or submits to, the jurisdiction of that Court, have the like jurisdiction".

In the Trade Marks

Act, 1919:—

Section ten

- For the words "may be made a rule of court" there shall be substituted the words "may, by leave of the Court or a judge thereof, be enforced in the same manner as a judgment or order of the Court to the same effect."

A.D. 1937.

FOURTH SCHEDULE.

Section 33.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
5 Edw. 7. c. 15.	The Trade Marks Act, 1905.	In section nine, the proviso. Section eleven. In section twelve, in subsections (2) and (4), the words "as to mode or place of user or otherwise." In section fourteen, in subsections (4) and (6), the words "as to mode or place of user or otherwise." In section seventeen the words "under the hand of the Registrar and". In section nineteen, the words "or in the case of trade marks in use before the thirteenth day of August, one thousand eight hundred and seventy-five." In section twenty-one, the words "as to mode or place of user or otherwise." Sections twenty-two to twenty-four. In section thirty, the words "at his registered address." In section thirty-two, the words "or by some person entitled by law to act in his name." In section thirty-four, the words "as to mode or place of user." Section thirty-seven. Section thirty-nine. In section forty-one, the words "or seven years from the passing of this Act, which ever shall last happen." In section forty-two the words from "unless" to the end of the section. In section forty-nine, the words "with the consent of the parties."

[1 EDW. 8. &
1 GEO. 6.]

Trade Marks
(*Amendment*) Act, 1937.

[CH. 49.]

A.D. 1937.

4TH SCH.
—*cont.*

Session and Chapter.	Short Title.	Extent of Repeal.
5 Edw. 7. c. 15— <i>cont.</i>	The Trade Marks Act, 1905— <i>cont.</i>	In section fifty-four, the words from the beginning of the section to "but". Section fifty-six. Sections sixty-two to sixty-four. Section sixty-seven.
4 & 5 Geo. 5. c. 16.	The Trade Marks Act, 1914.	The whole Act.
9 & 10 Geo. 5. c. 79.	The Trade Marks Act, 1919.	In section one, in subsection (1), the words "(including the Manchester Register)." In section two, subsections (1) to (5). Sections three and four. In section five, the words "under the principal Act," and the words "under this Part of this Act." Section six. In section nine, in subsection (1), the words "or section thirty-seven" and the words "or under Part II of this Act," and in subsection (3) the words "under this Act or". The First Schedule.

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